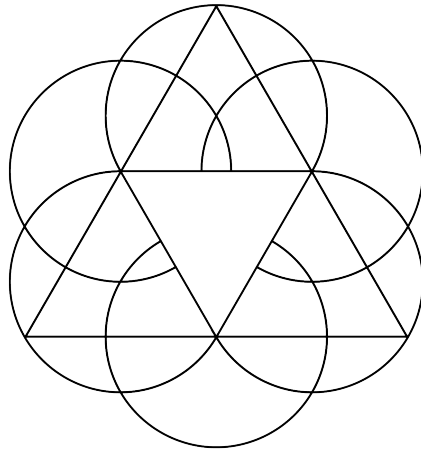


BYLAWS OF
DELTA DELTA DELTA
FRATERNITY



TRI DELTA

As amended July 13, 2024

BYLAWS OF DELTA DELTA DELTA FRATERNITY

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BYLAWS OF DELTA DELTA DELTA FRATERNITY

ARTICLE I – NAME

The name of this organization shall be Delta Delta Delta Fraternity, within these *Bylaws* referred to as the *Fraternity*.

ARTICLE II – PURPOSE

The Purpose of Delta Delta Delta shall be to establish a perpetual bond of friendship among its members, to develop a stronger and more womanly character, to broaden the moral and intellectual life, and to assist its members in every possible way. It shall also be the Purpose of Delta Delta Delta to promote and develop mutually beneficial relationships between the Fraternity and the colleges and universities where the Fraternity has established chapters, to develop qualities of unselfish leadership among its members, and to encourage them to assume, with integrity and devotion to moral and democratic principles, the highest responsibilities of college women.

ARTICLE III – STRUCTURE

Section 1. Organization. The Fraternity, a fraternal association founded at Boston University on Thanksgiving Eve 1888, shall function through Delta Delta Delta, a not-for-profit corporation organized for the benefit of the Fraternity, chartered by the state of Illinois on January 7, 1916, and is referred to in these *Bylaws* as the *Corporation*.

Section 2. Delta Delta Delta Fraternity. The Fraternity shall be organized as provided in these *Bylaws*, and shall have direction over Fraternity membership matters, chapters of the Fraternity, and related organizations and entities associated with the Fraternity, in accordance with these *Bylaws*.

A. *Character.*

- (1) The Fraternity shall be primarily a collegiate organization made up of members affiliated with collegiate chapters located near accredited colleges and universities.
- (2) The purpose of the alumnae chapter shall be to establish a perpetual bond of friendship among alumnae members of the Fraternity. Alumnae chapters shall strengthen interest and participation in the Fraternity by providing members with opportunities for growth and development, engaging in philanthropic activities, and creating a culture of inclusion for alumnae members in the area from diverse collegiate chapters, backgrounds, and experiences.

B. Administration. The Fraternity shall be administered by and shall function through the Convention as the supreme governing body of the Fraternity, the Fraternity Officers, the Fraternity Council, collegiate chapters, alumnae chapters, standing committees, house corporations, appointed Fraternity alumnae member volunteers, the Executive Office as authorized by the Executive Board, designated Fraternity representatives, and other groups as shall be organized with the permission and under the direction of the Executive Board. Unless otherwise stated in these *Bylaws*, a “designated Fraternity representative” means a person or persons designated by the Executive Board.

Section 3. Delta Delta Delta, an Illinois Not-For-Profit Corporation. The Corporation shall be governed as provided in its *Articles of Incorporation* and *Bylaws* and shall have direction over the business and legal affairs of the Fraternity.

- A. *Membership.* Article III of the *Bylaws* of the Corporation provides that those women who are initiated members in good standing with the Fraternity, a national unincorporated association, constitute the members of the Corporation.
- B. *Operation.* The Corporation, and any subsidiary organizations of the Corporation are and shall be the legal entities through which all financial affairs and business transactions of the Fraternity are and shall be handled. All revenues shall be obligations to and shall be paid to the Corporation or any subsidiary organization of the Corporation, and the Corporation or any subsidiary organization of the Corporation shall make all disbursements on behalf of the Fraternity.
- C. *Separate Entities.* For purposes of these *Bylaws*, the Corporation, the Fraternity, collegiate chapters, alumnae chapters, house corporations, Tri Delta Housing, Inc. a Texas non-profit corporation (and referred to in these *Bylaws* as Tri Delta Housing, Inc.) and subsidiary entities and any special purpose groups each shall be a separate entity.
- D. *Property Rights.*
 - (1) *Corporation.* The Fraternity shall not hold title to any property. Title to all tangible and intangible personal property and real property held by the Fraternity, and including funds as provided in Article XVIII, is and shall be vested in the Corporation; provided, that any of said funds which may be trust funds shall be held and administered by the Corporation in accordance with the terms of the trust or trusts to which they are subject.
 - (2) *Collegiate Chapters, Alumnae Chapters and Special Purpose Groups.* Collegiate chapters, alumnae chapters and special purpose groups may, as separate entities, hold title to tangible and intangible personal property used by them in the performance of their respective functions as provided in these *Bylaws*.
 - (3) *House Corporations.* In performance of house corporation functions, and in accordance with these *Bylaws*, house corporations may hold title to real property, lease properties and space, maintain properties and space, and own tangible and intangible personal property. House corporation articles of incorporation and bylaws shall contain provisions concerning the distribution of house corporation real and personal property upon inactivation of the chapter for which benefit the house corporation was formed and also concerning the rights of house corporation members, directors and officers in any such property in accordance with these *Bylaws*.
 - (4) *Members.* A member, new member, director or officer of the Corporation, the Fraternity or its collegiate chapters, alumnae chapters, house corporations and special purpose groups shall not have any right, title or interest to any property owned or used in connection with the performance of the functions of such entities, nor to any income or other funds received by such entities, and the bylaws of all of such entities shall so provide.
 - (5) *Loans and Grants of Security Interests.* Any member, director or officer of the Corporation, the Fraternity or its collegiate chapters, alumnae chapters, house corporations or special purpose groups shall have the right to acquire a security interest in any property owned by any of the above named entities to secure payment of a loan by the individual to any of the entities, provided that the loan and grant of security interest are first approved by the board of directors or members of the applicable organization as an arms-length, fair transaction. The member involved in the transaction shall refrain from voting on the transaction.

ARTICLE IV – MEMBERSHIP

Section 1. Eligibility. Only women who have never been an initiated member of another National Panhellenic Conference fraternal organization may be admitted to membership. Any undergraduate or postgraduate woman who is currently enrolled in an accredited college or university where a chapter of the Fraternity has been established shall be eligible for membership as a collegiate member. Any woman who is currently not enrolled as an undergraduate in an accredited college or university is eligible for membership as an alumna member.

Section 2. Members. Any woman who has been initiated into membership in the Fraternity who has not resigned or whose membership has not been terminated, is a member of the Fraternity.

Section 3. Organization of Members. Members of the Fraternity shall be organized into collegiate and alumnae chapters and may be organized into other incorporated or unincorporated groups to promote the purpose of the Fraternity.

ARTICLE V – EMBLEMS, INSIGNIA AND OFFICIAL PUBLICATION

Section 1. Emblems.

A. *Emblems of the Fraternity.*

- (1) *New Member Pin.* The official new member pin shall be three open deltas inscribed within an open delta and shall be executed in silver and green enamel.
- (2) *Trident.* The emblem of the Trident Degree shall be the official silver trident.
- (3) *Stars and Crescent Badge.* The emblem of the Stars and Crescent Degree shall be three golden stars, crown set with pearls, within a plain Roman golden crescent of three hundred degrees and bearing three raised deltas in black enamel. The Stars and Crescent emblem shall be the official badge of the Fraternity.
- (4) *Special Emblems.*
 - a. A special badge may be presented to each member upon installation as an Executive Board member. The special badge shall be a larger version of the Stars and Crescent badge with engraving on the crescent and the stars set with emeralds, the green of the emerald being the union of the colors.
 - b. Other special badges may be presented upon approval of the Executive Board.
 - c. A special badge may be presented to the current Fraternity President upon installation as Fraternity President to wear during her term as Fraternity President. This special badge shall be a larger version of the Stars and Crescent badge with engraving on the crescent and the stars set with emeralds, the green of the emerald being the union of the colors. The circle of green emeralds signifies the current and past board members that support the current Fraternity President and the three deltas of diamonds represent the past Fraternity Presidents and typify clear skies and smooth sailing.
 - d. A Circle Degree pendant may be made available to members upon the completion of the Circle Degree. The emblem shall be a gold pansy set with a pearl embedded in a circular cerulean blue enamel setting.
 - e. A Pearl Circle pendant may be made available to 10-year members. The emblem shall be a gold circle adorned by a white pearl.
 - f. A Silver Circle pin may be made available to 25-year members. The emblem shall be a silver stars and crescent and features the anniversary number engraved on the design.

- g. A Golden Circle pin may be made available to 50-year members. The emblem shall be a delta in white enamel supporting on its sides three golden deltas and inscribed in a golden circle surrounded by six spherical triangles in blue enamel.
 - h. A Diamond Circle pin may be made available to 75-year members. The emblem shall be similar to the Golden Circle pin with the addition of a small simulated diamond in the center.
- B. *Initiated Members to Receive Stars and Crescent Badge.* After the Stars and Crescent Degree has been conferred, each initiate shall receive a Stars and Crescent badge, on the back of which shall be engraved the initiated member's identification number.
- C. *Surrender.* The Executive Board may authorize the alumna advisor, any designated Fraternity representative or any member of the Executive Board to demand and receive any emblems bestowed on the member or new member. Emblems shall be surrendered under the following circumstances:
 - (1) *The New Member Pin.* The new member pin shall be surrendered to the collegiate chapter:
 - a. upon the new member's resignation or termination of membership;
 - b. upon the new member's withdrawal from the college or university; or
 - c. upon the new member's Initiation.
 - (2) *The Stars and Crescent Badge.* The Stars and Crescent badge and certificate of membership shall be surrendered to the Corporation:
 - a. upon the member's resignation or termination of membership;
 - b. upon becoming a member not in good standing with the Fraternity as provided in Article XVII;
 - c. upon becoming a member not in good standing with the collegiate chapter for financial reasons; or
 - d. upon death of a member, the Stars and Crescent badge shall be surrendered unless permission for other disposition has been granted by the Executive Board.
- D. *Purchase.* The Stars and Crescent badge shall be purchased only by the Corporation.

Section 2. Symbols.

- A. *The Colors.* Silver, gold and blue (cerulean).
- B. *The Jewel.* The pearl.
- C. *The Tree.* The pine.
- D. *The Flower.* The pansy.
- E. *The Patron Greek Divinity.* Poseidon.

Section 3. Official Insignia.

- A. *The Coat of Arms.* The official design shall be that of Richard B. Lockwood as pictured in the February 1907 issue of *The Trident* and revised in 1986: A shield quartered, the first and fourth quarters blue on each of which is a silver trident; the second and third quarters gold on each of which is a green pine tree; above the shield the crest, consisting of a torse with six folds alternating gold and blue, from which rises

a white, gold and blue pansy; below the shield the motto, "Let us steadfastly love one another" inscribed in Greek on a scroll.

- B. *Other Displays.* The Greek letters ΔΔΔ, emblems and other displays of the letters, insignia or symbols as the Executive Board designates shall be official insignia.
- C. *The Corporate Seal.* The corporate seal of the Corporation shall be composed of two concentric circles between which shall be inscribed the words "Delta Delta Delta" and "Illinois."

Section 4. Protection, Ownership, Display and Licensing.

- A. *Protection.* The Executive Board shall protect the manufacture and use of all official insignia. All emblems of the Fraternity shall, to the extent permitted by law, be protected by trademark owned by the Corporation.
- B. *Ownership.* All insignia, badges and special badges shall be owned by and remain in the Corporation. All badges are loaned to the members during their lifetimes, as long as they are members in good standing with the Fraternity.
- C. *Display.* Whenever any display or use of the emblems, letters or symbols has been designated as official insignia, the same shall be worn and displayed in accordance with Fraternity policies and procedures.
- D. *Licensing.* The creation, manufacture, replication, sale, use and display of official insignia shall be authorized by the Executive Board or its designated Fraternity representative and administered through Executive Office.

Section 5. Official Publication. The official publication of the Fraternity shall be *The Trident of Delta Delta Delta*.

ARTICLE VI – PHILANTHROPY

The Fraternity's philanthropy shall be children's cancer charities and the Fraternity's philanthropic mission shall be to promote such charities.

ARTICLE VII – CONVENTION

Section 1. Powers. The Convention is the supreme governing body of the Fraternity and when convened has all of the powers of supervision and government of the Fraternity, except for those reserved for the Executive Board. The Convention shall:

- A. adopt the order of business and standing rules;
- B. receive the announcement of the appointments of the Convention committees and of any special Convention committees appointed from among the members present;
- C. transact business;
- D. receive the report of the Leadership Cultivation and Selection Committee;

- E. elect the Executive Board of the Fraternity simultaneously with the Directors of the Corporation;
- F. elect alumnae members to serve on the Leadership Cultivation and Selection Committee; and
- G. conduct an installation ceremony for newly elected Fraternity Officers unless the Executive Board determines that for good reason an installation ceremony or ceremonies for a newly elected Fraternity Officer or Officers should be conducted on a date or dates following the Convention.

Section 2. Time and Place. A Convention shall be held biennially at a time and place to be set by the Executive Board, except as provided in this article. If deemed necessary by the Executive Board, the Convention may be held electronically. The means of communication designated for the meeting must allow all Convention attendees to actively participate verbally in the discussion that occurs as part of the business meeting agenda and permit voting delegates and Fraternity Officers to vote.

Section 3. Notification. Notice of the place and date of each Convention and the annual meeting of the members of the Corporation, held as a part of the Convention, proposed amendments to these *Bylaws*, and proposed slates of nominees for the Executive Board, the Directors of the Corporation and the Leadership Cultivation and Selection Committee, shall be transmitted in writing or by electronic means not less than five days or more than sixty days before the date set for the Convention by the Chief Executive Officer to all members eligible to vote at the Convention. If mailed, any such notice shall be deemed to be delivered when deposited in the United States mail addressed to the member entitled to notice at the address appearing on the records of the Corporation, with postage prepaid thereon.

Section 4. Membership, Eligibility to Vote.

A. *Voting Members.* The following members who are registered and present at the Convention are voting members:

- (1) Fraternity Officers;
- (2) an accredited delegate from each collegiate chapter who is the president of the collegiate chapter or, if the collegiate chapter president is unable to attend, an alternate accredited delegate who has been selected by the collegiate chapter; and
- (3) an accredited delegate from each alumnae chapter which has chosen to send a delegate to the Convention or, if the accredited delegate is unable to attend, an alternate accredited delegate who has been selected by the alumnae chapter.

B. *Value of Vote.* Each voting member shall have one vote.

C. *Non-Voting Members.*

- (1) Standing committee chairs who are registered and present may make motions, propose resolutions and may move their adoption.
- (2) All other members in good standing with the Fraternity who are registered and present may attend meetings, participate in the deliberations and propose resolutions.

Section 5. Quorum. A majority of those accredited delegates who are registered and present at the Convention shall constitute a quorum for the transaction of business.

Section 6. Management.

A. *Executive Board.* Details of the Convention shall be managed by the Executive Board.

- B. *Chair.* The President or in case of the President's absence another member, of the Executive Board who has been elected by the remaining members of the Executive Board shall act as chair of the Convention and shall preside at all meetings. In the event of the President's absence, the Secretary of the Corporation shall call the meeting of the remaining board members to elect the chair.
- C. *Convention Committees.*
- (1) *Credentials Committee.* The Credentials Committee shall consist of three members. The Committee shall provide a report to Convention at the beginning of each meeting where business is transacted.
 - (2) *Resolutions Committee.* The Resolutions Committee shall consist of five members, including the chair of the Bylaws Committee. The Committee shall prepare resolutions for presentation to the Convention as approved by a majority vote of the members of the Committee and make recommendations to the Convention concerning any resolution proposed by any member of the Convention.
 - (3) *Committee to Approve Minutes.* The Committee to Approve Minutes shall consist of three members. The Committee shall review and approve the minutes of the Convention and present a report to the subsequent Convention.

Section 7. Nomination and Election of the President and Executive Board of the Fraternity, Directors of the Corporation and Leadership Cultivation and Selection Committee.

- A. *Nomination.*
- (1) *Executive Board of the Fraternity and Directors of the Corporation.* The Leadership Cultivation and Selection Committee shall present a slate of nominees for the Executive Board of the Fraternity, simultaneously with the Directors of the Corporation, consisting of President and up to six additional Directors, who shall be nominated from among the alumnae members in good standing with the Fraternity. See Article VIII.
 - (2) *Leadership Cultivation and Selection Committee.* The Leadership Cultivation and Selection Committee shall present a slate of nominees for the next Leadership Cultivation and Selection Committee consisting of a chair and between six and eight committee members, who shall be nominated from among the alumnae members in good standing with the Fraternity. See Article XI.
- B. *Election.* The Convention shall elect the Executive Board of the Fraternity, Directors of the Corporation and Leadership Cultivation and Selection Committee.
- C. *Additional Nominations.* Any member in good standing with the Fraternity may make additional nominations for the President or Executive Board of the Fraternity and the Leadership Cultivation and Selection Committee Chair or Leadership Cultivation and Selection Committee by a date prior to Convention to be determined by the Leadership Cultivation and Selection Committee. All additional nominations will be fully considered by the Leadership Cultivation and Selection Committee.
- D. *Voting.*
- (1) *Executive Board.* The Executive Board of the Fraternity, simultaneously with the Directors of the Corporation, shall be elected as provided in this section.
 - a. If there are no more candidates nominated for the President or Executive Board than there are positions, a voice vote may be taken. In the case of additional nominations for President or Directors, voting shall be by written or electronic ballot. In case a written or electronic ballot is required, the candidate(s) with the most votes will be elected. A vote may occur in person or by electronic means if the means of the communication

designated for the meeting allows all members to actively participate verbally in the discussions that occur in that meeting.

- b. Any vote for a candidate for the President or Directors of the Fraternity that is not in conformity with these *Bylaws* shall not be counted.

(2) *Leadership Cultivation and Selection Committee.*

- a. If there are no more candidates nominated for the Leadership Cultivation and Selection Committee Chair or Leadership Cultivation and Selection Committee than there are positions, a voice vote may be taken. In the case of additional nominations, voting shall be by written or electronic ballot. In case a written or electronic ballot is required, the candidates with the most votes will be elected.
- b. Any vote for a candidate for the Leadership Cultivation and Selection Committee Chair or Leadership Cultivation and Selection Committee of the Fraternity that is not in conformity with these *Bylaws* shall not be counted.

- E. *Restriction on Nominations and Elections to the Board of Directors of the Corporation.* Only those nominated to serve as Executive Board members of the Fraternity shall be nominated to serve as Directors of the Corporation. Only those elected to serve as Executive Board members of the Fraternity shall be elected to serve as Directors of the Corporation.
- F. *Installation of Officers.* Newly elected officers shall be installed in conformity with the Rituals of the Fraternity at the close of the Convention at which they are elected unless the Executive Board determines that for good reason an installation or installations in conformity with the Rituals of the Fraternity should be conducted on a date or dates following the Convention.
- G. Section 8. Postponement of Convention. *Resolution of Executive Board.* If by unanimous vote of the Executive Board it would be impossible or inadvisable to hold the Convention because of national emergency or other reason, the Executive Board may resolve to postpone the Convention until a suitable time, but not later than the year of the next regular Convention.

ARTICLE VIII – FRATERNITY OFFICERS

Section 1. Classification and Selection.

- A. *Executive Board.* The Executive Board shall consist of the President and up to six additional Directors, who shall be nominated and elected from among the alumnae members in good standing with the Fraternity by the Convention as provided in Article VII. The members of the Executive Board shall also serve as Directors of the Corporation. Any member of the Executive Board shall not be employed by the Fraternity or the Corporation.
- B. *Chief Executive Officer.* The Executive Board shall employ a Chief Executive Officer. The Chief Executive Officer's attendance at any meeting shall not be included in the calculation of quorum and the Chief Executive Officer shall not have a vote unless otherwise provided in these *Bylaws*.
- C. *Fraternity Officers.* The Fraternity Officers shall consist of the members of the Executive Board and the Chief Executive Officer.

Section 2. Terms.

A. Length.

- (1) *Executive Board.* Except in the case of an Executive Board member appointed to fill a vacancy as provided in this article, the term of office of each Executive Board member shall be two years and shall commence on August 1 of the year in which the Executive Board member is elected. If the Executive Board is elected in a year in which the Convention does not end before August 1, the term of each Executive Board member elected shall commence immediately following the Convention and shall end July 31 of the year in which the next Convention is held or when the Executive Board member's successor is elected.
- (2) An Executive Board member shall hold office for the term for which the Executive Board member is elected or until the Executive Board member's successor is elected.
- (3) In cases of the postponement of a Convention or a vacancy in an office, for an Executive Board member holding the office for more than one year beyond the expiration date of the term, the extended period shall be considered one term.

B. Limitation.

- (1) *Executive Board.* An Executive Board member who is not elected President shall not serve for more than three terms.
- (2) *President.* The President shall not hold office for more than two terms. These terms as President may be in addition to any terms served as Director.

Section 3. Duties and Powers.

- A. *Executive Board.* Each member of the Executive Board shall have the duties and powers included in but not limited to those as provided in Fraternity policies and procedures. Each Executive Board member may delegate, with the consent of the Executive Board, some of the duties.
- B. *Chief Executive Officer.* The Chief Executive Officer shall serve as the Secretary and Treasurer of the Corporation and as Chief Executive Officer of the Fraternity. The Chief Executive Officer shall perform duties assigned to the Chief Executive Officer by the Executive Board.

Section 4. Compensation. See Article XVIII.

Section 5. Removal.

A. Executive Board.

- (1) Any Executive Board member may be removed in case of incapacity to act, gross neglect of duty, willful disregard of any provisions of these *Bylaws* or conduct detrimental to the interest, dignity or welfare of the Fraternity, by unanimous vote of the remaining Executive Board members, after consultation with the Leadership Cultivation and Selection Committee.
- (2) Except in cases of incapacity to act due to accident or illness, any Executive Board member shall not be removed until the Executive Board has provided the member with a written copy of the specific charges made against the Executive Board member and that Executive Board member shall be given the opportunity to be heard before the entire Executive Board.

- B. *Chief Executive Officer.* The Chief Executive Officer may be removed by the Executive Board in accordance with the provisions of the employment agreement.

Section 6. Vacancies. A member filling a vacancy shall serve for the unexpired term of the predecessor in office and shall hold office until a successor is elected or appointed. If the member filling a vacancy is

elected/appointed to fill an unexpired term of less than one year, she shall be eligible to serve the maximum terms allowed in Article VIII, Section 2B.

- A. *Executive Board.* If there is a vacancy in the office of President, a new President shall be elected from the remaining Directors by the remaining Directors of the Executive Board upon nomination by the Leadership Cultivation and Selection Committee. All other Executive Board vacancies shall be filled by appointment by the Executive Board upon nomination by the Leadership Cultivation and Selection Committee.
- B. *Chief Executive Officer.* A vacancy shall be filled by the Executive Board. There shall be no limitation to the length of time a Chief Executive Officer may be employed.

Section 7. Incapacity. The Executive Board may appoint a past member of the Executive Board upon nomination by the Leadership Cultivation and Selection Committee, regardless of how many terms the member may have served previously in the office, to serve in place of any Executive Board member who is unable to act due to incapacity, with the appointee to so serve until the incapacity no longer exists or the term of office of the incapacitated Executive Board member expires, whichever occurs first.

ARTICLE IX – EXECUTIVE BOARD

Section 1. Classification. The Executive Board shall consist of the President and Directors as provided in Article VIII, Section 1A.

Section 2. Meetings.

- A. *Regular Meetings.* Meetings shall be held annually at a time designated by the Executive Board and at a place designated by the President.
- B. *Special Meetings.* Special meetings of the Executive Board may be held upon the call of the President or of three other members of the Executive Board and shall be held at a time and place or in the manner designated by the authority calling the meeting. Special meetings may occur in person, or they may occur by phone or by electronic means if the means of communication designated for the meeting allows all members of the Executive Board to actively participate verbally in the discussions that occur in the meeting.
- C. *Notice and Postponement of Meetings.* Unless waived in writing, at least ten days' written or electronic notice stating the place, day and hour of any regular, special or postponed meeting shall be given to each member of the Executive Board by the Chief Executive Officer. Attendance at any meeting shall constitute waiver of notice. If mailed, any such notice shall be deemed to be delivered when deposited in the United States mail addressed to the Executive Board member at the address as it appears on the records of the Corporation, with postage prepaid thereon. Notices of regular meetings shall be given by the Chief Executive Officer at the direction of the President. Notices of special meetings shall be given by the Chief Executive Officer at the direction of the authority calling the meeting. If a quorum is not present, the Executive Board member(s) present may postpone the meeting and determine a new time and place for the postponed meeting. The Chief Executive Officer shall notify the Executive Board members who were absent of the time and place of the postponed meeting.

Section 3. Quorum and Voting. A majority of the Executive Board members shall constitute a quorum at any Executive Board meeting. A meeting may occur in person, by phone or by electronic means if the means of communication designated for the meeting allows all members of the Executive Board to actively participate

verbally in the discussions that occur in the meeting. The affirmative vote of the majority of the members of the Executive Board shall be required to constitute the action of the Executive Board at any meeting of the Executive Board unless a unanimous vote of the Executive Board is necessary where required under other sections of these *Bylaws*. Any action which may be taken at a meeting of the Executive Board may be taken without a meeting if consent in writing, setting forth the action taken, is approved in writing by all of the members of the Executive Board. The consent in writing by an Executive Board member can be an electronic consent in writing.

Section 4. Duties and Powers. The Executive Board shall act as the governing body of the Fraternity during the interim between Conventions, including the period during which a Convention has been postponed as provided in Article VII.

- A. *Duties.* The duties of the Executive Board shall include but not be limited to those as provided in accordance with Fraternity policies and procedures. The Executive Board shall have the administrative duty to interpret Fraternity Bylaws and policies.
- B. *Powers.* The Executive Board by unanimous vote shall:
- (1) charter new collegiate and alumnae chapters;
 - (2) withdraw the charters of collegiate and alumnae chapters;
 - (3) waive the 120-day notice of withdrawal of a collegiate chapter charter;
 - (4) adopt amendments to these *Bylaws* as provided in Article XXIV;
 - (5) resolve to postpone Convention as provided in Article VII; or
 - (6) remove due to cause any Director of the Tri Delta Housing Board.

Section 5. Expenses of Members. See Article XVIII.

ARTICLE X – FRATERNITY COUNCIL

Section 1. How Constituted. The Fraternity Council shall be comprised of:

- A. The Fraternity Officers;
- B. The board of trustees of the Delta Delta Delta Foundation, a Texas non-profit corporation; and
- C. The board of directors of the Tri Delta Housing, Inc, a Texas non-profit corporation.

Section 2. Chair and Secretary. The President of the Fraternity shall be the chair of the Fraternity Council. The Fraternity President shall appoint a secretary who shall be custodian of the minutes of the Fraternity Council.

Section 3. Responsibilities. The Fraternity Council shall meet upon the call of the Fraternity President, be present at each Convention and work in cooperation with each other to further the ideals of the Fraternity.

Section 4. Meetings. Meetings of the Fraternity Council shall be held at least once per biennium and called by the Fraternity President at a time and place to be designated by the Fraternity President.

ARTICLE XI – COMMITTEES

Section 1. Standing Committees.

- A. *Committees.* The Fraternity shall have the following standing committees: Bylaws Committee, Extension Committee, Fraternity Membership Status Committee, Ritual Committee and Enterprise Finance Committee.
- B. *How Constituted.* The members of each committee, including the chair, shall be appointed by the Executive Board. A co-chair or vice chair may also be appointed. Serving as co-chair or vice chair will not be considered a pre-requisite for appointment as chair. All members shall be alumnae members in good standing with the Fraternity.
- C. *Terms of Office, Removal and Vacancies.* The terms of the members shall coincide with the term of office of the Executive Board who appointed them and shall be extended until their successors have been appointed. Any appointed member may be removed by the Executive Board. Any committee vacancy shall be filled by the Executive Board, and the appointed member shall serve for the unexpired term.
- D. *Structure.* All standing committees, when not assembled as a group, may take action on any question presented to them by a vote taken by mail, including e-mail, facsimile transmission or such means as is permitted by applicable law.
- (1) *Bylaws Committee.* The Bylaws Committee shall consist of three members, including the chair and if appointed, a co-chair or vice chair. The Fraternity President or the Fraternity President's designated Executive Board member shall serve as an ex-officio member. The Bylaws Committee shall be responsible for the preparation and presentation of amendments to come before the Convention and shall conduct an annual review of all Fraternity documents and any subsidiary or related corporation documents organized for the benefit of the Fraternity or the Corporation.
 - (2) *Extension Committee.* The Extension Committee shall consist of six or more members, including the chair and if appointed, a co-chair or vice chair and a Tri Delta member who serves in a designated volunteer leadership role with the National Panhellenic Conference. The Extension Committee shall be responsible for providing recommendations to the Executive Board for the approval of establishing new collegiate chapters.
 - (3) *Fraternity Membership Status Committee.* The Fraternity Membership Status Committee shall consist of five members, including the chair and if appointed, a co-chair or vice chair. The Fraternity Membership Status Committee shall be responsible for the evaluation and final decision of membership standing resulting from matters such as member conduct, including termination, academic performance, financial obligations and reinstatement.
 - (4) *Ritual Committee.* The Ritual Committee shall consist of three or more members, including the chair and if appointed, a co-chair or vice chair. The Ritual Committee shall be responsible for making any recommendations regarding the Rituals to the Executive Board for approval. The Ritual Committee shall also be responsible for assisting and conducting any ceremonies requested by the Executive Board.
 - (5) *Enterprise Finance Committee.* The Enterprise Finance Committee shall consist of up to seven members, including the chair and if appointed, a co-chair or vice chair, and at least one representative from each of the following: Delta Delta Delta Fraternity, the Delta Delta Delta Foundation and Tri Delta Housing, Inc. As delegated by the governing board for each organization, the Enterprise Finance Committee shall be responsible for providing financial guidance for these organizations and providing regular reports as determined by each organization.

Section 2. Leadership Cultivation and Selection Committee.

- A. *Composition.* The Leadership Cultivation and Selection Committee shall consist of between seven and nine elected alumnae members, including the chair, and two appointed collegiate members.
- B. *Duties.* The Leadership Cultivation and Selection Committee shall be responsible for identifying potential leaders, reviewing current board and Leadership Cultivation and Selection Committee members and recommending Fraternity leaders for service in elected and appointed positions.
- (1) *Executive Board.* The Leadership Cultivation and Selection Committee shall present a slate to the Convention for election to the Executive Board of the Fraternity and Directors of the Corporation. See Article VII and Article VIII.
 - (2) *Leadership Cultivation and Selection Committee.* The Leadership Cultivation and Selection Committee shall present a slate to the Convention for election to the next Leadership Cultivation and Selection Committee. See Article VII.
 - (3) *Delta Delta Delta Foundation.* The Leadership Cultivation and Selection Committee shall present a slate of recommended candidates for election to the board of trustees of the Delta Delta Delta Foundation, a Texas non-profit corporation, in accordance with its bylaws.
 - (4) *Tri Delta Housing, Inc.* The Leadership Cultivation and Selection Committee shall present a slate for election to Tri Delta Housing, Inc, a Texas non-profit corporation, in accordance with its bylaws.
 - (5) *Exclusions.* Employees of the Fraternity, the Corporation, the Delta Delta Delta Foundation and Tri Delta Housing, Inc. and any subsidiary or related corporation shall not be eligible to be slated for election to the Executive Board of the Fraternity, or as a Director of the Corporation, the Delta Delta Delta Foundation or Tri Delta Housing, Inc.. No person shall be eligible to be slated in a director position that would result in any overlap of the Executive Board of the Fraternity (the members of which also serve as the Directors of the Corporation), and the Delta Delta Delta Foundation or Tri Delta Housing, Inc.
- C. *Selection of Collegiate Representatives.* The Leadership Cultivation and Selection Committee will appoint two collegiate members in good standing with the Fraternity to serve on the committee in accordance with Fraternity policies and procedures.
- D. *Terms/Vacancies/Exclusions.*
- (1) *Length.* The term of the Leadership Cultivation and Selection Committee shall coincide with the term of office of the Executive Board.
 - (2) *Limitation.*
 - a. *Committee.* A Leadership Cultivation and Selection Committee member who is not elected chair shall not serve for more than two slated and elected terms.
 - b. *Chair.* The chair shall not serve for more than two slated and elected terms. These terms as chair may be in addition to any terms served as a Leadership Cultivation and Selection Committee member.
 - c. *Collegiate Member.* A member who serves a one-year appointed term as a collegiate member of the Leadership Cultivation and Selection Committee is eligible to serve two terms as an alumna member if slated and elected at a future date.
 - d. A member appointed to serve the remainder of an unexpired Leadership Cultivation and Selection Committee member term, remains eligible to serve two Leadership Cultivation and Selection Committee terms if slated and elected.
 - (3) *Vacancies.* In the event that an appointed collegiate member or any elected alumnae member of the Leadership Cultivation and Selection Committee is unable or unwilling to serve, the vacant position(s) may be filled by appointment by the Leadership Cultivation and Selection Committee.

If the Leadership Cultivation and Selection Committee chair is unable or unwilling to serve, the chair position shall be filled through a nomination of the Leadership Cultivation and Selection Committee and appointment by the Executive Board.

- (4) *Exclusions.* The members of the Leadership Cultivation and Selection Committee shall not be employed by the Fraternity or Corporation or any subsidiary or related entity organized for the benefit of the Fraternity or Corporation. A member of the Leadership Cultivation and Selection Committee shall not be nominated to serve on the Executive Board of the Fraternity, the board of trustees of the Delta Delta Delta Foundation, or the board of directors of Tri Delta Housing, Inc. for the biennium subsequent to any term of service on the Leadership Cultivation and Selection Committee. A current Fraternity Officer may not serve on the Leadership Cultivation and Selection Committee.
- E. *Quorum and Voting.* A majority of the elected and/or appointed members of the Leadership Cultivation and Selection Committee shall constitute a quorum at any Leadership Cultivation and Selection Committee meeting. The affirmative vote of the majority of the members of the Leadership Cultivation and Selection Committee shall be required to constitute the action of the Leadership Cultivation and Selection Committee.

Section 3. Other Committees. Other committees, including task forces, may be appointed at the discretion of the Executive Board.

ARTICLE XII – PANHELLENIC PARTICIPATION

Section 1. Membership. The Fraternity shall be a member of National Panhellenic Conference. Collegiate and alumnae chapters shall select delegates and be represented in the local panhellenic association or equivalent organization.

Section 2. National Panhellenic Conference Representation.

- A. *Fraternity Representation.* The Fraternity shall be represented on the National Panhellenic Conference's Council of Delegates. In addition, the Fraternity may have one representative on the National Panhellenic Conference Board of Directors.
- B. *The Fraternity's Delegate on the National Panhellenic Conference's Council of Delegates.* The Fraternity's delegate shall be the Fraternity President or an Executive Board appointee. The official delegate of the Fraternity shall:
- (1) vote on behalf of the Fraternity, after consultation with the Executive Board, on actions requiring the vote of the delegate;
 - (2) attend the meetings of the National Panhellenic Conference and perform the duties assigned to the delegate as the representative of the Fraternity; and
 - (3) keep the Executive Board informed concerning National Panhellenic Conference business.
- C. *The Fraternity's Representative on the National Panhellenic Conference's Board of Directors.* In accordance with the National Panhellenic Conference Bylaws, Tri Delta may hold one Board of Directors position gained by either election from the National Panhellenic Conference Council of Delegates or by rotation. Tri Delta's representative on the National Panhellenic Conference Board of Directors shall:
- (1) attend the meetings of the National Panhellenic Conference; and
 - (2) perform the duties assigned as a Director of the National Panhellenic Conference's Board of Directors.

Section 3. Panhellenic Obligations of Members of the Fraternity. Members of the Fraternity shall uphold the purpose, creed, compact and other unanimous agreements of the National Panhellenic Conference and shall cooperate to develop cordial and mutually helpful relationships to the extent that the agreements do not conflict with these *Bylaws*.

ARTICLE XIII – EXECUTIVE OFFICE

Section 1. Location. The Executive Office shall be located at a place designated by the Executive Board.

Section 2. Purpose. The Executive Office shall constitute a central office where the business of the Fraternity shall be conducted and where all of the permanent records of the Fraternity shall be maintained. The Chief Executive Officer will ensure electronic storage and back up services of all the permanent records of the Fraternity will be maintained according to the Fraternity’s document retention policy. The Executive Office shall also be the registered office and constitute the principal place of business of the Corporation.

Section 3. Operation. The Executive Office and its personnel shall be under the management of the Chief Executive Officer, subject to the direction of the Executive Board. The expenses of maintaining and operating the Executive Office shall be administered by the Corporation in conjunction with cost sharing agreements between the entities that utilize the Executive Office and its personnel.

ARTICLE XIV – COLLEGIATE CHAPTERS

Section 1. New Collegiate Chapters. Collegiate chapters may be established near accredited colleges and universities as the Executive Board shall determine.

- A. *How Admitted.* New collegiate chapters shall be admitted by unanimous vote of the Executive Board.
- B. *How Established.* New collegiate chapters shall be established after the unanimous vote of the Executive Board, the completion of membership selection and intake and formally pledging its members.
- C. *Naming of Collegiate Chapters.* New collegiate chapters shall be named by the successive letters of the Greek alphabet. Any reactivated collegiate chapter shall bear the name of the original chapter at that college or university. Collegiate chapters outside of the United States shall be named by the successive letters of the Greek alphabet prefixed by the name of the country.
- D. *Granting of Charter and Installation.*
 - (1) The date on which the charter members are initiated as a group shall be the official charter date of the collegiate chapter.
 - (2) A charter signed by all members of the Executive Board shall be issued evidencing the admission of each collegiate chapter. The names of all the charter members shall appear on the charter.
 - (3) The installation shall be under the direction of the Executive Board.
- E. *Initiation.*
 - (1) *Charter Members.* All new members who meet the requirements of Initiation shall be initiated as charter members at the time of installation of a new collegiate chapter.

- (2) *Alumnae and Special Initiates.* Upon majority vote of the Executive Board any alumna member of a petitioning group may be initiated. The petitioning group may request the Initiation of any woman who has been a sponsor for the group and permission for Initiation may be granted by the Executive Board or designated Fraternity representative.
- (3) *Delayed and Proxy Initiations.* Petitioners or alumnae members who are unable to be present at the Initiation held in connection with the installation of a new collegiate chapter may be initiated upon approval of the Executive Board or designated Fraternity representative and may be initiated by the original collegiate chapter or by another collegiate chapter specified by the Executive Board or designated Fraternity representative. Initiates shall become members of the original collegiate chapter.

Section 2. Surrender, Withdrawal or Reactivation of Charters.

- A. *Surrender.* A collegiate chapter may petition to have its charter withdrawn by presenting a written request to the Executive Board, stating reasons in full and signed by at least two thirds of the collegiate membership.
- B. *Withdrawal.*
 - (1) The charter of a collegiate chapter may be withdrawn by unanimous vote of the Executive Board. Where withdrawal of a charter takes place, other than after or as part of the imposition of discipline, the Executive Board shall give notice of the withdrawal, specifying the effective date, at least 120 days prior to the effective date. Electronic notice shall be provided to:
 - a. the president of the collegiate chapter involved at the chapter address;
 - b. the president of the house corporation, if any, that holds title to the chapter's property; and
 - c. the president of each recognized alumnae chapter located within a radius of 150 miles of the collegiate chapter involved; and
 - d. the college or university where the collegiate chapter is located.
 - (2) If the Executive Board decides that the interests of the Fraternity require that the 120 day period specified above be shortened or eliminated, it may, by unanimous vote and after notifying the Fraternity Council, shorten or eliminate the notice period.
 - (3) The decision of the Executive Board is final.
- C. *Reactivation.* At the discretion of the Executive Board, inactivated collegiate chapters of the Fraternity may be reactivated whenever conditions affecting the existence of a collegiate chapter at the particular college or university permits such reactivation.
- D. *Distribution of Assets Upon Inactivation of Collegiate Chapter and Obligations to Reactivated Collegiate Chapters.* See Article XVIII.

Section 3. Membership Regulations.

- A. *Collegiate Chapters.* Membership in a collegiate chapter shall be by invitation issued by the collegiate chapter in accordance with Fraternity policies and procedures and local panhellenic rules and regulations.
- B. *Newly Established Collegiate Chapters.* In the event a new collegiate chapter participates in recruitment before installation of the collegiate chapter, the designated Fraternity representative shall determine the method of membership selection.

- C. *Newly Chartered Collegiate Chapters.* Former collegiate members and alumnae of any organization which is granted a charter as a collegiate chapter may be admitted to membership after approval by the Executive Board or designated Fraternity representative.

Section 4. Supervision. Collegiate chapters shall be under the direction of the Executive Board assisted by Advisory Committees and designated Fraternity representatives.

A. *Advisory Committees.*

- (1) *How Chosen.* The members of the advisory committee shall be selected in conformity with the Fraternity model bylaws for collegiate chapters and shall have local supervision over the collegiate chapter.
- (2) *Removal of Advisors.* Any member of the advisory committee who does not properly perform their duties may be removed by the Executive Board or designated Fraternity representative.

Section 5. Responsibilities.

A. *Membership.* A collegiate chapter shall have the responsibility to elect to membership and initiate eligible women in accordance with Fraternity policies and procedures and Rituals of the Fraternity.

- (1) A collegiate chapter may have no more than three Initiations within one Fraternity fiscal year (August 1 to July 31) nor hold an Initiation between the closing date of the academic calendar year and the beginning date for the fall term without permission of the alumna advisor and the designated Fraternity representative.
- (2) Mock Initiations and hazing are forbidden.

B. *Collegiate Chapter Operations.* A collegiate chapter shall:

- (1) conduct meetings;
- (2) elect officers;
- (3) discipline its members under the supervision of the chapter conduct/academic/finance committee;
- (4) adopt bylaws and make policies and procedures in conformity with these *Bylaws*, current Fraternity model bylaws for collegiate chapters and in accordance with Fraternity policies and procedures; and
- (5) perform any acts necessary to the existence and operation of the collegiate chapter, in conformity with these *Bylaws*, current Fraternity model bylaws for collegiate chapters and in accordance with Fraternity policies and procedures.

C. *Collegiate Chapter Management.* It shall be the responsibility of the collegiate chapter to:

- (1) maintain the standards, safety and well-being of its members;
- (2) submit all reports and information in accordance with Fraternity policies and procedures; and,
- (3) perform its duties in conformity with these *Bylaws*, current Fraternity model bylaws for collegiate chapters and in accordance with Fraternity policies and procedures.

Section 6. House Directors. A collegiate chapter utilizing a collegiate chapter facility shall have a house director in accordance with Fraternity policies and procedures.

Section 7. Convention Delegate. The collegiate chapter president shall be the official chapter delegate to Convention and to all Fraternity meetings designated by the Executive Board. The chapter bylaws shall provide for election of an alternate delegate to such meetings.

Section 8. Finances.

- A. *Charter Fees.* See Article XVIII.
- B. *Revenues and Disbursements.* Each collegiate chapter shall provide in its bylaws for the proper financing of the chapter and for the prompt payment of all chapter obligations.
- C. *Obligations of the Collegiate Chapter.* Each collegiate chapter shall be responsible for the collection and payment of dues and fees to the Corporation. See Article XVIII.
- D. *Financial Management.*
 - (1) *Supervision.* Financial affairs of each collegiate chapter shall be subject to review by the Executive Board and other designated Fraternity representatives.
 - (2) *Fund Raising.*
 - a. Proper financial management shall include the protection and proper use of all funds received for scholarship or other charitable or philanthropic purposes.
 - b. No funds shall be solicited in the name of the collegiate chapter, the Fraternity or the Corporation without the permission of the Executive Board or designated Fraternity representative.
- E. *Property Rights.* See Article III.

Section 9. Discipline.

- A. *Supervision.* Disciplinary actions and procedures affecting a collegiate chapter shall be under the direction of the Executive Board and any designated Fraternity representative.
- B. *By Whom Disciplinary Action Initiated.* Disciplinary action may be initiated by:
 - (1) the collegiate chapter advisory committee or any collegiate chapter advisor;
 - (2) any designated Fraternity representative; or
 - (3) any member of the Executive Board.
- C. *When Disciplinary Action Initiated:* The following omissions or commissions may constitute a basis for disciplinary action of a collegiate chapter:
 - (1) failure to maintain required academic standards;
 - (2) failure to maintain proper social standards;
 - (3) failure to meet financial obligations;
 - (4) failure to cooperate with the Fraternity Officers;
 - (5) illegal purchase, use or display of official insignia or failure to prevent illegal purchase or display of official insignia by the members or new members;
 - (6) failure to comply with Fraternity policies and procedures or these *Bylaws* or to observe procedures relative to efficient chapter management;
 - (7) conducting or permitting any sort of mock Ritual or ceremony;
 - (8) hazing, mistreating or harassing of a collegiate member, an alumna member or a new member;
 - (9) sponsoring of men's auxiliary organizations or individual men;
 - (10) receiving warning, probation or sanctions by its university or college administration; or
 - (11) contributing to the impairment of the welfare or prestige of the Fraternity.

D. *Procedure.*

- (1) The member or committee initiating disciplinary action shall furnish a written report to the Executive Board or to the designated Fraternity representative who shall forward the recommendation to the Executive Board.
- (2) The Executive Board shall consider the written report and may conduct any further investigation.
- (3) The Executive Board may take disciplinary action including but not limited to the withdrawal or suspension of specified privileges granted to collegiate chapters. The duration of any disciplinary action shall be for a defined period imposed by the Executive Board. The disciplinary action shall be communicated to the collegiate chapter by any of the following methods: mail, e-mail or facsimile transmission. The notice shall specify the terms and the length of the disciplinary action.
- (4) At the end of the defined period the designated Fraternity representatives supervising the collegiate chapter shall report to the Executive Board. When the collegiate chapter has met the terms of disciplinary action, the Executive Board may remove disciplinary action and restore chapter privileges.
- (5) If the collegiate chapter has not met the terms of disciplinary action, the Executive Board may extend disciplinary action or withdraw the charter of the collegiate chapter.
- (6) The Executive Board may impose disciplinary action on a collegiate chapter without going through the above procedures if the collegiate chapter has been on disciplinary action within the preceding two years or if the circumstances warrant such action.

ARTICLE XV – ALUMNAE CHAPTERS

Section 1. Definition. An alumnae chapter shall be defined as any organized group of alumnae members chartered by the Fraternity and exercising the responsibilities and privileges of alumnae chapter membership.

Section 2. Organization. Any group of alumnae living in the same locality may form an alumnae chapter by applying to the Executive Board for a charter.

- A. *Granting of Charter.* Alumnae chapters may be chartered by unanimous vote of the Executive Board. A charter signed by all the members of the Executive Board shall be issued to newly established alumnae chapters.
- B. *Naming of Alumnae Chapters.* Each alumnae chapter shall bear the name of the city, town or area where it is located.
- C. *Bylaws.* Alumnae chapters shall adopt bylaws and make policies and procedures in conformity with these *Bylaws*, Fraternity model bylaws for alumnae chapters and in accordance with Fraternity policies and procedures.

Section 3. Membership. Any alumna member or unaffiliated collegiate member in good standing with the Fraternity is eligible for membership.

Section 4. Surrender, Withdrawal or Reactivation of Alumnae Charters.

- A. *Surrender.* Upon written notice to the Executive Board, an alumnae chapter may disband and shall surrender its charter to the Chief Executive Officer.

- B. *Withdrawal.* The charter of any alumnae chapter shall be withdrawn by unanimous vote of the Executive Board upon failure of the alumnae chapter to meet its financial obligations to the Corporation or for any other reasons deemed by the Executive Board to be sufficient.
- C. *Reactivation.* At the discretion of the Executive Board, inactivated alumnae chapters of the Fraternity may be reactivated. Past financial obligations to the Corporation must be met unless waived by the Executive Board.
- D. *Distribution of Assets Upon Inactivation of Alumnae Chapter.* See Article XVIII.

Section 5. Supervision. Alumnae chapters shall be under the direction of the Executive Board assisted by designated Fraternity representatives.

Section 6. Rights and Responsibilities.

- A. *Alumnae Chapter Initiations.* An alumnae chapter shall have the opportunity to invite to membership and initiate eligible women in accordance with Fraternity policies and procedures and Rituals of the Fraternity.
- B. *Alumnae Chapter Operations.* An alumnae chapter shall:
 - (1) hold meetings;
 - (2) elect officers;
 - (3) confer the Circle Degree in conformity with the Fraternity Rituals;
 - (4) recommend women for membership; and
 - (5) perform any other acts necessary to their existence and operation, in conformity with these *Bylaws*, current Fraternity model bylaws for alumnae chapters and in accordance with Fraternity policies and procedures.
- C. *Alumnae Chapter Management.* It shall be the responsibility of the alumnae chapter to:
 - (1) submit all information in accordance with current Fraternity policies and procedures; and
 - (2) perform its duties in conformity with these *Bylaws*, current Fraternity model bylaws for alumnae chapters and in accordance with Fraternity policies and procedures.

Section 7. Convention Delegates. Each alumnae chapter shall be entitled to one voting delegate and one alternate delegate to the Convention of the Fraternity, provided that all financial obligations of the alumnae chapter to the Corporation have been met. The delegate and alternate delegate of each alumnae chapter shall be members in good standing with that alumnae chapter and shall have paid Fraternity dues for the year in which they are serving as delegates.

Section 8. Finances.

- A. *Charter Fees.* See Article XVIII.
- B. *Revenues and Disbursements.* Each alumnae chapter shall provide in its bylaws for the proper financial management of the alumnae chapter and prompt payment of all its obligations.
- C. *Obligations of the Alumnae Chapter.* Each alumnae chapter shall be responsible for the collection and payment of dues and fees to the Corporation. See Article XVIII.

D. *Financial Management.*

- (1) *Supervision.* Financial affairs of each alumnae chapter shall be subject to review by the Executive Board and other designated Fraternity representatives.
- (2) *Fund Raising.*
 - a. Proper financial management shall include the protection and proper use of all funds received for scholarship or other charitable or philanthropic purposes.
 - b. No funds shall be solicited in the name of the alumnae chapter, the Fraternity or the Corporation without the notification of the Executive Board or designated Fraternity representative.

E. *Property Rights.* See Article III.

Section 9. Discipline.

A. *Supervision.* Disciplinary actions and procedures affecting an alumnae chapter or group shall be under the direction of the Executive Board and any designated Fraternity representative.

B. *By Whom Disciplinary Action Initiated:* Disciplinary action may be initiated by:

- (1) any designated Fraternity representative; or
- (2) any member of the Executive Board.

C. *When Disciplinary Action Initiated:* The following omissions or commissions may constitute a basis for disciplinary action of an alumnae chapter.

- (1) exercising or attempting to exercise the privileges of an alumnae chapter without the assumption of the responsibilities of an alumnae chapter;
- (2) failure to meet financial obligations;
- (3) failure to cooperate with the Fraternity Officers;
- (4) failure to comply with Fraternity policies and procedures or these *Bylaws* or to observe procedures relative to efficient chapter management;
- (5) conducting, participating or permitting any sort of mock Ritual or ceremony;
- (6) hazing, mistreating or harassing a collegiate member, an alumna member or a new member; or
- (7) contributing to the impairment of the welfare or prestige of the Fraternity.

D. *Procedure.*

- (1) The member initiating disciplinary action shall furnish a written report to the Executive Board or to the designated Fraternity representative who shall forward the recommendation to the Executive Board.
- (2) The Executive Board shall consider the written report and may conduct any further investigation.
- (3) The Executive Board may take disciplinary action including but not limited to the withdrawal or suspension of specified privileges granted to alumnae chapters. The duration of any disciplinary action shall be for a defined period imposed by the Executive Board. The disciplinary action of the Executive Board at the conclusion of any disciplinary proceeding shall be communicated to the chapter being disciplined by any of the following methods: mail, e-mail or facsimile transmission. The notice shall specify the terms and the length of the disciplinary action.
- (4) At the end of the defined period the designated Fraternity representatives supervising the alumnae chapter shall report to the Executive Board. When the alumnae chapter has met the terms of the disciplinary action, the Executive Board may remove the disciplinary action and restore alumnae chapter privileges.
- (5) If the alumnae chapter has not met the terms of disciplinary action, the Executive Board may:

- a. order the alumnae chapter to cease to operate or represent itself as an alumnae chapter of the Fraternity;
- b. withdraw the charter of the alumnae chapter;
- c. extend disciplinary action; or
- d. impose other disciplinary action including the discipline of individual members.

ARTICLE XVI – MEMBERSHIP REGULATIONS

Section 1. New Members.

- A. *New Member Defined.* Any woman who is enrolled at a college or university where a collegiate chapter is located and has met the membership requirements, has been invited to become a member of the Fraternity and has signed a written pledge to become a member, but who has not been initiated into membership in the Fraternity, shall be considered a new member.
- B. *Membership Requirements.* A woman who is enrolled at a college or university where a collegiate chapter is located may be pledged to the Fraternity after acceptance of an invitation issued by the collegiate chapter and payment of the new member fee. See Article IV and Article XVIII.
- C. *References.* References or letters of recommendation may be furnished by:
 - (1) any alumna member in good standing with the Fraternity;
 - (2) any initiated collegiate member in good standing with that initiated collegiate member's collegiate chapter and the Fraternity; or
 - (3) an alumnae chapter.
- D. *Duration.* A new member shall remain a new member until initiated except for the following circumstances:
 - (1) The membership shall expire upon transfer to another college.
 - (2) The membership shall be suspended when the new member withdraws from the college or university where the new member has been pledged.
 - (3) The membership shall be terminated after disciplinary proceedings as provided in Article XVII.
 - (4) The membership shall be considered resigned upon written notice to the collegiate chapter by the new member of the new member's desire to break the new member's pledge.
 - (5) The rules and regulations of National Panhellenic Conference relating to duration and expiration of a pledge, and replying after breaking or termination of a pledge shall apply to any new member.
- E. *Repledging.*
 - (1) A new member who has accepted an invitation to membership in Delta Delta Delta but withdrew from the collegiate chapter prior to her Initiation is eligible to be replying to the new member's original collegiate chapter after payment of a replying fee and in accordance with Fraternity policies and procedures and the rules and regulations of National Panhellenic Conference.
 - (2) Under no circumstances may a former new member be replying more than once.

Section 2. Collegiate Members.

- A. *Initiation Defined.* A woman shall be initiated into membership in the Fraternity when the Trident and Stars and Crescent Degrees have been conferred upon the member according to the Rituals of the Fraternity.

B. *Eligibility for Initiation.* Before the Trident and Stars and Crescent Degrees may be conferred, the new member shall:

- (1) be currently enrolled at the college or university where the collegiate chapter is located;
- (2) have completed new member orientation;
- (3) not be subject to disciplinary action;
- (4) have no past due financial obligations to the Corporation and collegiate chapter, or have an approved and current installment plan for any outstanding Corporation and collegiate chapter financial obligations as listed on the Statement of Financial Obligations; and
- (5) sign and abide by the obligations of membership in accordance with Fraternity policies and procedures.

C. *Collegiate Member Defined.*

- (1) *Affiliated Collegiate Member.* An initiated member who is enrolled at a college or university where a collegiate chapter is located shall be an affiliated collegiate member unless:
 - a. the member's academic class at the time of Initiation has graduated;
 - b. the member is a collegiate transfer member who elects not to affiliate;
 - c. the member has resigned;
 - d. the member's membership has been terminated; or
 - e. Extraordinary Membership Status has been granted by the Executive Board.
- (2) *Collegiate Transfer Member.* An initiated member transferring to a college or university where there is a collegiate chapter may become affiliated with the collegiate chapter.
- (3) *Unaffiliated Collegiate Member.* An initiated member who previously was defined as an affiliated collegiate member but is temporarily not enrolled at a college or university where a collegiate chapter is located shall be an unaffiliated collegiate member.
- (4) *Affiliated Collegiate Member Whose Academic Class Has Graduated.* A postgraduate or undergraduate member whose academic class at the time of the member's Initiation has graduated may become affiliated with the collegiate chapter into which the member was initiated upon two-thirds vote of the collegiate members of the collegiate chapter eligible to vote who are present and voting if such affiliation does not conflict with local college or panhellenic regulations, or the member may receive the Circle Degree with the member's academic class and acquire alumna status.
- (5) *Affiliated Collegiate Member Whose Collegiate Chapter Has Closed.* An affiliated collegiate member at a college or university where a collegiate chapter is inactive shall cease to have any privileges to represent to be a member of the closed collegiate chapter. The use of emblems and official insignia of the Fraternity shall be authorized by the Executive Board.

D. *Extraordinary Membership Status.* When a collegiate member is unable to participate in collegiate chapter affairs, the collegiate member shall fulfill membership obligations in accordance with Fraternity policies and procedures.

Section 3. Alumnae Members.

A. *Alumna Member Defined.* A member who has been initiated into membership in the Fraternity shall be an alumna member unless:

- (1) the member is an affiliated collegiate member;
- (2) the member is an unaffiliated collegiate member;
- (3) the member has resigned; or
- (4) the member has been terminated.

- B. *Chapter Designation.* An alumna member's designated chapter is the collegiate chapter of Initiation or, in the absence of an initiating collegiate chapter, the alumna member may have an alternate chapter designation.
- C. *Membership.* Any alumna member or unaffiliated collegiate member may affiliate with an alumnae chapter. Other membership designations may be established in accordance with Fraternity policies and procedures.
- D. *Circle Degree of Initiation.*
- (1) *Eligibility.* Any member in good standing with the Fraternity is eligible for the Circle Degree who:
 - a. is a graduating collegiate member;
 - b. is an alumna member; or
 - c. has received permission from the designated Fraternity representative.
 - (2) *Obligations of Graduating Seniors.* Members who receive the Circle Degree as graduating seniors shall fulfill all responsibilities to their collegiate chapters until the end of the academic calendar year.

Section 4. Financial Obligations. See Article XVIII.

Section 5. Resignation. Any member or new member may resign from membership. The membership records at the Executive Office shall be so marked.

Section 6. Reinstatement. Any former initiated member who has resigned or whose membership has been terminated may make only one request for reinstatement in accordance with Fraternity policies and procedures. See Article XVIII.

Section 7. Surrender of Fraternity Emblems. Upon resignation or termination of membership, official Fraternity emblems must be returned to the Corporation. All other emblems of the Fraternity must be surrendered as provided in Article V.

ARTICLE XVII – MEMBERSHIP DISCIPLINE

Section 1. Causes for Disciplinary Action.

- A. *New Members and Affiliated or Unaffiliated Collegiate Members.* New members and affiliated or unaffiliated collegiate members shall be disciplined for:
- (1) conduct unbecoming a member of the Fraternity;
 - (2) disloyalty to the principles of the Fraternity;
 - (3) contributing to the impairment of the welfare or prestige of the Fraternity;
 - (4) failure to abide by the obligations of membership;
 - (5) misrepresentation of any fact regarding eligibility for membership;
 - (6) failure to meet collegiate chapter academic standards;
 - (7) failure to meet financial obligations to the Corporation or collegiate chapter with which the member is affiliated;
 - (8) failure to comply with these *Bylaws* or the policies and procedures of the Fraternity, or collegiate chapter, or policies, rules and regulations of the university/college;
 - (9) unauthorized purchase, use or display of official insignia;
 - (10) conducting, participating or permitting any sort of mock Ritual or ceremony;

- (11) hazing, mistreating or harassing of a collegiate member, an alumna member or a new member;
or
- (12) conduct detrimental to the interest, dignity or welfare of the Fraternity.

B. *Alumnae Members.* Alumnae members shall be disciplined for:

- (1) conduct unbecoming a member of the Fraternity;
- (2) disloyalty to the principles of the Fraternity;
- (3) contributing to the impairment of the welfare or prestige of the Fraternity;
- (4) failure to comply with these *Bylaws* or the policies and procedures of the Fraternity;
- (5) unauthorized purchase, use or display of official insignia;
- (6) conducting, participating or permitting any sort of mock Ritual or ceremony;
- (7) hazing, mistreating or harassing of a collegiate member, an alumna member or a new member;
or
- (8) conduct detrimental to the interest, dignity or welfare of the Fraternity.

Section 2. By Whom Disciplinary Action Initiated. Disciplinary action shall be initiated by:

A. *New Members and Affiliated or Unaffiliated Collegiate Members.*

- (1) the conduct/academic/finance committee or the alumna advisor of the local collegiate chapter;
- (2) any designated Fraternity representative; or
- (3) any member of the Executive Board.

B. *Alumnae Members.*

- (1) any member of the Executive Board; or
- (2) any designated Fraternity representative.

Section 3. Membership Status as a Result of Disciplinary Action.

A. *Collegiate Member Not In Good Standing with a Collegiate Chapter or the Fraternity*

- (1) A collegiate member is not in good standing with the collegiate chapter with which the member is affiliated if:
 - a. the Fraternity Membership Status Committee has placed the member on Fraternity probation;
 - b. the member is in arrears in the member's financial obligations to the Corporation or to the collegiate chapter with which the member is affiliated;
 - c. the collegiate chapter with which the member is affiliated or any member designated in this article has recommended to the Fraternity Membership Status Committee that the member be placed on Fraternity probation or that the membership be terminated; or
 - d. the conduct/academic/finance committee has declared the member not in good standing with the collegiate chapter and has placed the member on collegiate chapter probation.
- (2) A collegiate member not in good standing with the collegiate chapter with which the member is affiliated shall not be entitled to:
 - a. provide references for potential new members;
 - b. vote on potential new members proposed for membership;
 - c. vote on any other questions coming before the collegiate chapter with the following exception: A collegiate member placed on Fraternity probation by the Fraternity Membership Status Committee may be required to attend meetings and to vote as a term of probation, and the extent of such attendance and voting obligation shall be indicated at the time probation is imposed;

- d. hold collegiate chapter office;
- e. attend Convention or represent the Fraternity at the college or university or in the community;
- f. exercise other privileges of membership as specified by the conduct/academic/finance committee; or
- g. wear the badge or any Fraternity emblems.

B. *Alumna Member Not In Good Standing with the Fraternity.*

- (1) An alumna member is not in good standing with the Fraternity only when the Fraternity Membership Status Committee has placed the member on Fraternity probation.
- (2) An alumna member not in good standing with the Fraternity shall not be entitled to:
 - a. provide references for potential new members;
 - b. vote at chapter meetings;
 - c. wear the badge or any Fraternity emblems;
 - d. hold any office in the Fraternity;
 - e. attend Convention or represent the Fraternity;
 - f. represent or volunteer in any capacity on behalf of the Fraternity; or
 - g. exercise other privileges of membership as specified by the Fraternity Membership Status Committee.

Section 4. Terms and Notice as a Result of Disciplinary Action.

A. *Terms.*

- (1) Any collegiate or alumna member may be placed on Fraternity probation by the Fraternity Membership Status Committee.
- (2) Any member recommended for Fraternity discipline may have their membership terminated at the discretion of the Fraternity Membership Status Committee as the committee interprets and applies the Bylaws of Delta Delta Delta and applies Fraternity policies and procedures. The considerations for membership termination include but are not limited to:
 - i recommendation for membership termination;
 - ii recommendation for Fraternity probation where the Fraternity Membership Status Committee determines the violation of Fraternity Bylaws or policies warrant membership termination;
 - iii failure to meet the terms of Fraternity probation; or
 - iv additional violations of Bylaws or Fraternity policies.
- (3) The decision of the Fraternity Membership Status Committee on discipline, Fraternity probation and termination shall be as set forth in the Fraternity Membership Discipline Procedures.
- (4) The disciplinary procedure to be followed shall be determined by the status of the member being disciplined at the time the procedure is initiated.
- (5) Only the Fraternity Membership Status Committee may terminate the membership of an initiated member or grant approval for the membership termination of a new member.

- B. *Notice of Proceedings.*** Upon a recommendation of an initiated member for Fraternity probation or termination or a new member for termination, the member will receive a notice of proceedings and it will include the notice of action and relevant procedure documents pertaining to membership discipline. The Fraternity Membership Discipline Procedures and the Fraternity policies and procedures as they exist at the time of the disciplinary matter address the procedures for disciplinary action. A failure of any member, committee or designated Fraternity representative to follow Fraternity Membership Discipline Procedures or Fraternity policies and procedures as they exist at the time of the disciplinary matter shall not invalidate any recommendation to the Fraternity Membership Status Committee for discipline.

- C. *Notice of Action.* The action of the Fraternity Membership Status Committee at the conclusion of any disciplinary proceeding shall be communicated to the collegiate member, alumna member or new member being disciplined by electronic notification on behalf of the Fraternity Membership Status Committee, copies of which shall be sent to the collegiate or alumnae chapter involved. The electronic notification shall specify the terms and the length of the Fraternity probation or the effective date of any termination of membership. The reasons for the Fraternity Membership Status Committee action need not be stated. If the action consists of termination of membership, the membership records at the Executive Office shall be so marked. A member or new member must surrender Fraternity emblems as provided in Article V.

Section 5. Disciplinary Action of New Members.

- A. New member discipline shall be in accordance with the Fraternity Membership Discipline Procedures and the Fraternity policies and procedures of Delta Delta Delta as they exist at the time of the disciplinary matter. A failure of any member, committee or designated Fraternity representative to follow Fraternity Membership Discipline Procedures or Fraternity policies and procedures as they exist at the time of the disciplinary matter shall not invalidate any recommendation to the Fraternity Membership Status Committee for discipline.
- B. If a collegiate chapter fails to impose chapter probation or to recommend termination of membership, this shall not preclude independent action by the Fraternity Membership Status Committee, the alumna advisor or any designated Fraternity representative.
- C. The new member being disciplined shall have the right to submit a written statement to the Fraternity Membership Status Committee, however the rules of evidence used by courts or administrative bodies shall not apply. The new member being disciplined shall not have the right to confront witnesses. The Fraternity Membership Status Committee may, outside the presence of the new member being disciplined, examine any materials, including the disciplinary report, and consider any information provided by others.
- D. The Fraternity Membership Status Committee may choose to terminate the membership of a new member who has been recommended for termination and the Fraternity Membership Status Committee may that no disciplinary action be taken.
- E. The Fraternity Membership Status Committee will determine the final membership status of the new member.

Section 6. Disciplinary Action of Affiliated or Unaffiliated Collegiate Members.

- A. Collegiate member discipline shall be in accordance with the Fraternity Membership Discipline Procedures and the Fraternity policies and procedures of Delta Delta Delta as they exist at the time of the disciplinary matter. A failure of any member, committee or designated Fraternity representative to follow Fraternity Membership Discipline Procedures or Fraternity policies and procedures as they exist at the time of the disciplinary matter shall not invalidate any recommendation to the Fraternity Membership Status Committee for discipline.
- B. The member being disciplined shall have the right to submit a written statement to the Fraternity Membership Status Committee, however the rules of evidence used by courts or administrative bodies shall not apply. The member being disciplined shall not have the right to confront witnesses. The Fraternity Membership Status Committee may, outside the presence of the member being disciplined, examine any materials, including the disciplinary report, and consider any information provided by others.
- C. The Fraternity Membership Status Committee may choose to terminate the membership of a member who has been recommended for Fraternity probation, the Fraternity Membership Status Committee may choose to place a member who has been recommended for termination on Fraternity probation and the Fraternity Membership Status Committee may choose that no disciplinary action be taken.
- D. The Fraternity Membership Status Committee will determine the final membership status of the member.

Section 7. Disciplinary Action of Alumnae Members.

- A. Alumna member discipline shall be in accordance with the Fraternity Membership Discipline Procedures and the Fraternity policies and procedures of Delta Delta Delta as they exist at the time of the disciplinary matter. A failure of any member, committee, designated Fraternity representative or the Fraternity Membership Status Committee to follow Fraternity Membership Discipline Procedures or Fraternity policies and procedures as they exist at the time of the disciplinary matter shall not invalidate any recommendation to the Fraternity Membership Status Committee for discipline.
- B. The Fraternity Membership Status Committee may choose to terminate the membership of a member who has been recommended for Fraternity probation, the Fraternity Membership Status Committee may choose to place a member who has been recommended for termination on Fraternity probation and the Fraternity Membership Status Committee may choose that no disciplinary action be taken.
- C. The Fraternity Membership Status Committee will determine the final membership status of the member.

Section 8. Confidential and Privileged Nature of Communications; Waiver of Damage Claims.

- A. *Communication.* Any oral or written communication made by any member, committee, constituted body or by the Fraternity concerning the conduct of any member or new member of the Fraternity in connection with any investigation, hearing, recommendation, complaint, report or proceeding concerning said conduct or discipline is absolutely privileged and confidential. This section does not preclude communications approved by the Tri Delta Executive Office to be made by a constituted body of the Fraternity or communications of the Fraternity to respond to claims and charges made against a constituted body of the Fraternity or the Fraternity that address a disciplinary action or proceeding, or responses by the Fraternity to public claims concerning a member or members or new member or new members and which public claim has a potential to cause harm to the reputation of the constituted body of the Fraternity or the Fraternity, or disclosures and communications required by law.
- B. *Waiver.* Each member and new member waive any right of action, against the Fraternity, the Corporation, the collegiate chapters, alumnae chapters, special purpose groups, house corporations, members, new members and committees and each of them, arising from any written or oral statement concerning the member's or new member's conduct or membership status in connection with membership disciplinary matters, including the potential for disciplinary matters.

ARTICLE XVIII – FRATERNITY FINANCE

Section 1. Conduct of Financial Affairs. The financial affairs and business transactions of the Fraternity shall be conducted through the Corporation. All revenues referenced in this article shall be payable to the Corporation, and all disbursements shall be made by the Corporation.

Section 2. Fiscal Year. The fiscal year of the Fraternity and of the Corporation shall commence on August 1 of each calendar year and shall end on July 31 of the succeeding calendar year unless a change is made by the legal or taxing authority.

Section 3. Revenues. The Fraternity shall have no revenues. The Executive Board will review membership dues and fees on an annual basis and will publish a schedule of dues and fees including any adjustments. Any annual adjustments of individual dues and fees exceeding 8.5% shall require a vote of the Convention. The following revenues and any other revenues shall be payable to the Corporation:

- A. *Collegiate Member and New Member Dues.* Each collegiate member and new member shall pay annual dues.
- B. *Alumnae Member Dues.* An alumna member may pay annual dues in accordance with Fraternity policies and procedures.
- C. *New Member Fees.* Each woman who is pledged or repledged to become a member of any collegiate chapter shall pay a new member fee.
- D. *Initiation Fees.* Each woman who is initiated into membership in the Fraternity shall pay an Initiation fee plus the cost of the badge.
- E. *Collegiate Chapter Educational Reserve Fund Fees.* Each collegiate chapter shall pay, on or before March 15 each year, an amount calculated upon the number of members of the collegiate chapter who were initiated members on March 1.
- F. *Charter Fees.*
 - (1) A newly established collegiate chapter shall pay, prior to Initiation, a one-time charter fee in addition to the new member fee, badge fee, and Initiation fee for each charter member, first initiate and any woman invited to membership by the Executive Board.
 - (2) A newly established alumnae chapter shall pay a one-time charter fee.
 - (3) A re-established alumnae chapter shall pay a re-charter fee.
- G. *Reinstatement Fee.* A former initiated member requesting reinstatement shall pay a reinstatement fee equivalent to the current Fraternity Initiation fee and any applicable outstanding financial balances before the membership may be restored.
- H. *Extraordinary Membership Status.* A collegiate member who has been granted Extraordinary Membership Status shall pay any dues and fees as determined by the member's collegiate chapter and in accordance with Fraternity policies and procedures.

Section 4. Financial Administration.

- A. *The Board of Directors of the Corporation.* The Board of Directors of the Corporation shall direct the financial policies of the Corporation and the Fraternity.
- B. *Insurance.* With the approval of the Executive Board, the Chief Executive Officer shall secure insurance policies of types and in amounts that they deem reasonable and prudent, to protect the activities and interests of the Corporation, its directors and officers, its employees, its volunteers and its related entities from insurable risks.
- C. *Budgets.* The Corporation shall operate under an annual budget approved by the Executive Board.
- D. *Audits.* The financial affairs of the Corporation shall be audited annually by a firm of certified public accountants.

Section 5. Compensation.

- A. *Directors and Officers.* A Director of the Corporation or Officer of the Fraternity, except the Chief Executive Officer, shall receive no compensation for the performance of the duties. The Corporation shall pay or reimburse each director and officer for expenses incurred in performance of the duties.
- B. *Collegiate Chapters.* A collegiate member shall receive no compensation for serving as a collegiate chapter officer, either by reduction of dues, fees or otherwise. A member of the advisory committee shall receive no compensation for serving as an advisor.
- C. *Alumnae Chapters.* An alumna member shall receive no compensation for serving as an alumnae chapter officer.
- D. *House Corporations.* A local house corporation member shall receive no compensation for the performance of the duties as a director or officer of the house corporation. Each director and officer shall be reimbursed for expenses incurred in performance of their duties as approved by the board of directors.

Section 6. Indemnification. Any person who is made or threatened to be made a party to any legal proceeding by reason of the fact that such person is or was a director, officer, agent or employee of the Fraternity/Corporation, or is or was serving at the request of the Fraternity/Corporation as a director, officer, employee or agent of another corporation, partnership, joint venture, trust or other enterprise, shall be indemnified by the Fraternity/Corporation to the maximum extent authorized by the Illinois Not-For-Profit Corporation Act.

Section 7. Recovery for Failure to Comply with *Bylaws*. Should the Corporation deem it necessary to employ an attorney or attorneys to recover damages as a result of the willful breach of these *Bylaws*, any party against whom enforcement or recovery is sought, including without limitation any member, officer or director of a house corporation, may be held jointly and severally responsible to the Corporation for all costs, damages and expenses, including without limitation attorneys' fees and related costs, expended or incurred on their behalf.

Section 8. Funds.

- A. *General Operating Fund.* The General Operating Fund is derived from the Corporation's gross receipts which are not, pursuant to these *Bylaws* and the *Bylaws* of the Corporation, required to be used for a specific purpose. The General Operating Fund of the Corporation shall be used to carry on the business of the Corporation and of the Fraternity, as set forth in the bylaws of each entity.
- B. *National Endowment Fund.* A sum from each Initiation fee shall become part of the National Endowment Fund. The net income from the National Endowment Fund shall be used to carry on the business of the Corporation and the Fraternity, as set forth in the bylaws of each entity.
- C. *Collegiate Chapter Educational Reserve Fund.* The Collegiate Chapter Educational Reserve Fund shall be used to defray expenses and costs of collegiate training and education events, programs and experiences.
- D. *Commingling and Investment of Funds.* All funds held by the Corporation may be commingled and invested as a common fund. The income to each commingled fund shall be calculated in accordance with the Fraternity's Investment Policy Statement, which is reviewed and approved by the Executive Board each biennium.

Section 9. Distribution of Assets Upon Inactivation and Obligations to Reactivated Chapters.

- A. *Alumnae Chapter.* If an alumnae chapter becomes inactive title to all assets of the alumnae chapter shall be vested in the Corporation. Debts of the alumnae chapter shall be paid to the extent that the assets of the alumnae chapter are sufficient to do so. Any balance shall be retained by the Corporation.
- B. *Collegiate Chapter.*
- (1) *Inactivation before July 1, 1982.* For chapters that became inactive before July 1982, title to the assets of the chapter (if any) have been vested in the Corporation. The collegiate chapter debts were paid to the extent that the assets were sufficient to do so. Any balance was retained by the Corporation. Upon reactivation of that collegiate chapter, the Corporation will make available the amount-remaining (if any) of the assets of the collegiate chapter, without interest, and less any costs incurred in the closing of the collegiate chapter and less any amounts necessary to reactivate the collegiate chapter.
 - (2) *Inactivation after June 30, 1982.* For chapters that became or become inactive after June 30 1982, title to all assets shall be vested in the Corporation. The collegiate chapter debts shall be paid to the extent that the collegiate chapter's assets (if any) are sufficient to do so. Any balance shall be retained by the Corporation. Upon reactivation of the collegiate chapter within fifteen years from the date of the inactivation of the collegiate chapter, the Corporation will make available to the collegiate chapter the amount, remaining (if any) of the assets of the collegiate chapter after deducting the costs incurred in the closing of the collegiate chapter and less any amounts necessary in reactivating the collegiate chapter. Any cash amount less all costs received by the Corporation upon the inactivation of the collegiate chapter shall become part of the General Operating Fund and shall be commingled and invested in the common fund as provided in this article. The Corporation may transfer any portion of the assets, formerly held by an inactivated collegiate chapter, to Tri Delta Housing, Inc. The balance of the chapter's Collegiate Chapter Reserve Fund (if any) shall be recredited to the reactivated collegiate chapter without interest if reactivated before 2036.
- C. *House Corporation -Distribution of Assets Upon Inactivation of Collegiate Chapter.* If the collegiate chapter for the benefit of which the house corporation has been organized is inactivated, the house corporation assets shall be transferred to and vested in Tri Delta Housing, Inc., or an associated entity of Tri Delta Housing, Inc., unless and to the extent the Executive Board of Delta Delta Delta determines by majority vote that it is in the best interests of the Fraternity or Tri Delta Housing, Inc. to decline the acceptance of any or all of the assets of the house corporation. If and to the extent the Executive Board should so determine by majority vote, then the Executive Board may provide the house corporation with Executive Board approvals necessary to allow the governing documents of the house corporation to be modified so that the house corporation may either continue in operation or may otherwise dispose of any such assets in a way approved by the Executive Board.

ARTICLE XIX –DISTRIBUTION OF ASSETS UPON DISSOLUTION

If the Fraternity should be dissolved, then the Fraternity's members, except for its then Executive Board, shall cease to be members of the Corporation and shall cease to have any rights in respect to the management of the Corporation. The Corporation thereupon shall be managed by its then Board of Directors, the members of which shall become the sole members of the Corporation and shall become a self-perpetuating Board of Trustees. Upon such a dissolution of the Fraternity, all of the assets of the Corporation shall, after the payment of all of the liabilities of the Corporation, be held and managed by the Corporation in a manner consistent with ensuring that the Corporation continues to qualify as an organization exempt from federal income tax under Section 501 (c) of the United States Internal Revenue Code of 1986, as amended. For a period of 25 years

after the dissolution, all of the Corporation's assets shall be retained by the Corporation for the possibility of a Fraternity reorganization. If the Fraternity is reorganized within 25 years after its dissolution, then the self-perpetuating Board of Trustees of the Corporation shall, upon such reorganization, make available to the reorganized Fraternity all of the Corporation's assets, in such form as they may exist at the time of such reorganization, and the persons who were members of the Fraternity at the time of its dissolution again shall become members of the Corporation with the same rights, privileges and responsibilities they had prior to the dissolution, including the right to elect the Board of Directors of the Corporation. The self-perpetuating Board of Trustees thereafter shall cease to exist. If Delta Delta Delta Fraternity is not reorganized within 25 years after its dissolution, then all of the assets of the Corporation thereafter shall be held by the Corporation exclusively for scientific or educational purposes. All of its net income, but no part of its actual assets, shall be expended exclusively for such purposes, and the Corporation shall be operated from that point forward by the self-perpetuating Board of Trustees in a manner consistent with ensuring that the Corporation qualifies as an organization exempt from federal income tax under Section 501 (c) (3) of the United States Internal Revenue Code of 1986, as amended. Further, no part of the net income of the Corporation is to be expended in any manner that would disqualify this Corporation from qualification under that Code Section.

ARTICLE XX – HOUSE CORPORATIONS

Section 1. Organization. House corporations are non-profit corporations organized from collegiate and alumnae members of the Fraternity to enhance the social, civic, and educational life of its members; to provide and maintain a furnished residence, lodge or meeting space for the benefit of the collegiate members; and hold title to real property, lease properties and space, maintain property and space, own tangible and intangible or personal property for the benefit of the collegiate members of the chapters and to further the objectives of Delta Delta Delta Fraternity.

- A. *How Established.* House corporations shall be organized, operated and, when applicable, dissolved in conformity with these *Bylaws* and in accordance with Fraternity policies and procedures.
- B. *Naming of House Corporations.* The name of a house corporation shall include the Greek designation of the collegiate chapter for which it was established.
- C. *Supervision.* House corporations shall be subject to review by the Executive Board and any designated Fraternity representative.
- D. *Articles of Incorporation and Bylaws.*
 - (1) House corporations shall adopt articles of incorporation, bylaws and make policies and procedures in conformity with these *Bylaws*, current Fraternity model articles of incorporation, Fraternity model bylaws for house corporations and in accordance with Fraternity policies and procedures.
 - (2) Upon request, a house corporation shall provide a copy of its articles of incorporation and its bylaws to the Chief Executive Officer or to any designated Fraternity representative appointed by the Executive Board.
 - (3) Articles of incorporation and bylaws of the house corporations shall not be changed without the prior written consent of the Executive Board or the prior written consent of the designated Fraternity representative of the Executive Board to review and approve changes on its behalf.

Section 2. Membership. The following shall be members of the house corporation:

- A. *Collegiate Members.* All members of the respective collegiate chapter who are in good standing with the Fraternity and the collegiate chapter.

B. *Alumnae Members.*

- (1) All alumnae members of the collegiate chapter who are in good standing with the Fraternity.
- (2) All members (if available) of the local alumnae chapter(s) who are in good standing with the Fraternity.
- (3) A member in good standing with the Fraternity who has been approved by the house corporation board of directors to be a member of the house corporation.
- (4) Members in good standing with the Fraternity appointed as members by the Board of Directors of Tri Delta Housing, Inc.

Section 3. Responsibilities. Each house corporation board of directors shall have supervision over the business transactions, financial affairs, and maintenance for facilities used for housing and/or facilities used for meetings of the collegiate chapter in conformity with these *Bylaws*, articles of incorporation, current Fraternity model bylaws for house corporations and in accordance with Fraternity policies and procedures.

Section 4. Officers and Directors.

- A. *Eligibility.* All members of a house corporation are eligible for election to the office of director at the annual meeting, provided that the majority of directors shall be alumnae members.
- (1) Only an alumna director is eligible to be elected as president, vice president or treasurer.
 - (2) Any director is eligible to be elected as secretary.

B. *Meetings.*

- (1) All members of the collegiate chapter in good standing with the Fraternity can attend and vote at any of the annual or special meetings.
- (2) Only designated collegiate chapter officers and advisors shall be invited to board of director meetings, and shall have a vote only if they are qualified as a member of the board of directors.
- (3) All meetings of the house corporation shall be conducted in accordance with Article III, Section 2 of the house corporations model bylaws.

Section 5. Finances.

- A. *Financial Management.* Each house corporation shall operate on a budget; shall receive revenues due it; shall make disbursements for legal obligations contracted by the house corporation and the Fraternity and shall be responsible for paying its share of the cost of insurance purchased on its behalf by the Corporation.
- B. *Distribution of Annual Income.* Unless the United States Internal Revenue Code of 1986 or any amendment or amendments requires otherwise, each house corporation may submit to the Corporation on or before July 31 of each calendar year, the net income the house corporation has received. Each house corporation may retain part of its income each year to apply to the indebtedness on the property to which it holds title. Upon written application to the Executive Board, all funds which the Corporation may have received shall be made available with interest to any house corporation provided it has been demonstrated that the requested funds are necessary for the welfare of the collegiate chapter for which it holds property.
- C. *Fund Raising.* No funds shall be solicited in the name of the chapter, the Fraternity, the Corporation or the house corporation without the approval of the Executive Board or designated Fraternity representative.

Section 6. Property Rights, Distribution of Assets Upon Dissolution-or Inactivation of House Corporation and Obligations to Reactivated Collegiate Chapters.

- A. *Property Rights.* See Article III.
- B. *Distribution of Assets upon Inactivation of Collegiate Chapter.* See Article XVIII.
- C. *Distribution of Assets upon Dissolution or Inactivation of House Corporation.* If there is a vote to dissolve the house corporation under the applicable law for the house corporation, all assets of the house corporation shall be transferred to and vest in Tri Delta Housing, Inc., or an associated entity of Tri Delta Housing, Inc., unless and to the extent the Executive Board of Delta Delta Delta determines by majority vote that it is in the best interests of the Fraternity or Tri Delta Housing, Inc. to decline the acceptance of any or all of the assets of the house corporation. If the house corporation is suspended or becomes inactive under the applicable law for the house corporation and, if applicable under the applicable law for the house corporation, the house corporation is not reinstated within the time period allowed for reinstatement, all assets of the house corporation may be transferred to a newly created house corporation whose governing documents comply with the Bylaws of Delta Delta Delta Fraternity, or all assets of the house corporation shall otherwise be transferred to and vest in Tri Delta Housing, Inc., or an associated entity of Tri Delta Housing, Inc., unless and to the extent the Executive Board of Delta Delta Delta determines by majority vote that it is in the best interests of the Fraternity or Tri Delta Housing, Inc. to decline the acceptance of any or all of the assets of the house corporation.
- D. *Obligations to Reactivated Collegiate Chapter.* See Article XVIII.

Section 7. Recovery for Failure to Comply with Fraternity Bylaws. See Article XVIII.

ARTICLE XXI – TRI DELTA HOUSING

Section 1. Purpose. The purpose of the Tri Delta Housing, Inc., a Texas non-profit corporation, is (1) to hold title to property through title holding companies of which it is the sole member and through entities affiliated with the Corporation by common directors, and which properties are used for collegiate members of Delta Delta Delta Fraternity, (2) to use these properties to provide furnished housing, meeting and gathering places, and dining services for the social and educational use of collegiate members of Delta Delta Delta Fraternity; (3) to manage those properties directly or through third parties; and (4) to work with Delta Delta Delta Fraternity volunteers and board members associated with other properties that are used for collegiate members of Delta Delta Delta Fraternity and which properties are not owned by title holding companies of which Corporation Tri Delta Housing, Inc. is a member or the sole member, and which do not have directors that are in common with Corporation's Tri Delta Housing, Inc. Directors. Delta Delta Delta Fraternity functions through Delta Delta Delta, an Illinois not-for-profit corporation (the Delta Delta Delta not-for-profit corporation hereinafter referred to as "Delta Delta Delta"). Delta Delta Delta is exempt from federal income tax under Section 501(c)(7) of the Code. The Corporation shall not carry on activities that are not in furtherance of its purpose.

Section 2. Dissolution. Upon dissolution of the Corporation, all right, title and interest in and to any assets held or owned by the Corporation or used by it in connection with the performance of its functions shall be distributed to Delta Delta Delta, an Illinois not-for-profit corporation, so long as such corporation continues to exist as a not-for-profit corporation exempt from federal income tax under Section 501(c) of the Code. If Delta Delta Delta, an Illinois not-for-profit corporation no longer exists as a not-for-profit corporation exempt from federal income tax under Section 501(c) of the Code at the time of the dissolution of the Corporation, then all right, title, and interest in and to any assets held or owned by the Corporation or used by it in connection

with the performance of its functions shall be distributed to one or more non-profit organizations selected by the board of directors which are exempt from taxes under Section 501(c) of the Code, for one or more purposes that are exempt under the Texas franchise tax.

ARTICLE XXII – SPECIAL PURPOSE GROUPS

Special purpose groups may be organized by the Executive Board or by members of the Fraternity with the permission of the Executive Board whenever, in the opinion of the Executive Board, the organization of such group would promote the purpose or the interests of the Fraternity. No funds shall be solicited in the name of a chapter, the Fraternity or the Corporation without the notification of the Executive Board or designated Fraternity representative.

ARTICLE XXIII – PARLIAMENTARY AUTHORITY

The rules contained in the current edition of *Robert's Rules of Order Newly Revised* shall govern this Fraternity in all parliamentary procedures in respect to which they are applicable and are consistent with these *Bylaws*.

ARTICLE XXIV – AMENDMENTS

Section 1. Adoption. The affirmative vote of a majority of the votes entitled to be cast at any meeting of the Convention is required for adoption of any amendments.

Section 2. How Submitted. Any member in good standing with the Fraternity may submit an amendment to the Bylaws Committee. The Bylaws Committee shall draft and submit each proposal with the committee's recommendation whether to adopt the proposal to the Chief Executive Officer. The notification of proposed amendments shall be transmitted in writing or by electronic means as provided in Article VII, Section 3.

Section 3. Amendments without Previous Notice. Amendments to these *Bylaws* of which notice has not been given shall be submitted to the Convention if a resolution to consider the proposed amendments is approved by a majority of the members of the Bylaws Committee and by two thirds of the votes entitled to be cast at any meeting of the Convention.

Section 4. Amendments between Conventions. Amendments between Conventions may be adopted by unanimous vote of the Executive Board, and these amendments shall be subject to approval by majority vote of the next Convention. Any amendments shall be valid and binding upon all members of the Fraternity from the time of their adoption by the Executive Board until the next Convention.

COPIES OF THE SUMMARY OF ARTICLES OF INCORPORATION (AS AMENDED) AND THE BYLAWS OF DELTA DELTA DELTA, AN ILLINOIS CORPORATION ORGANIZED NOT FOR PROFIT, ARE ON FILE AT THE EXECUTIVE OFFICE AND MAY BE SEEN UPON REQUEST.
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